

THE UNIVERSAL HOUSE OF JUSTICE

1992-09-07

dear bahá'í friends,

number of National Spiritual Assemblies in response to our communication of 3 September 1992, reporting the actions they have taken in regard to two bahá'í prisoners in iran, messrs. bihnám mítháqí and kayván khalajábádí.

Although it is not possible at present to answer all the questions raised concerning these two friends, we have been asked to share with you the following background information gleaned from the records thus far available.

messrs. mítháqí and khalajábádí were members of a group of three well-known bahá'ís of karaj who were assisting the bahá'ís in that community.

At the time of their arrest they were also helping bahá'í children in their studies. mr. mítháqí is 30 years of age and married. mr. khalajábádí is of similar age, but his marital status is not known.

following their arrest on 29 April 1989, they were taken together to the gohardasht prison in karaj for interrogation. Although their cases are similar in many ways, they do differ in some details and it is assumed, therefore, that they are being dealt with separately by the authorities. both prisoners had been seen by mr. reynaldo galindo pohl, Special rapporteur of the united Nations human rights commission, in evin prison on his last visit to iran in december 1991, and he later reported that they appeared to be in bad health. further information about each of these cases is set forth below.

Bihnám Mitháqí—After being arrested on 29 April 1989, he was taken to the gohardasht prison and put into solitary confinement for

an unspecified period. on 19 june 1989, the islamic court in karaj condemned him to eight years' imprisonment on charges of "spying for the bahá'í organization." he appealed this verdict to the islamic court at evin prison, and a second verdict issued on 12 may 1990 by that court sentenced him to three years' imprisonment and 15 lashes.

The time already served in prison was not counted against this new term.^{136.1}

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286 following this, there was a further appeal by mr. mitháqí's wife, maryam, resulting in another judgment, and later still he had a fourth trial. All charges and sentences were communicated to him verbally and not in writing.

when mr. galindo pohl asked him why he had not taken a lawyer for his defense, he replied that he did not have the means and, in any case, this would not be useful as a government lawyer, instead of defending him, would only advise him to admit to the accusations made against him in order to obtain a reduction of his sentence. As you have already been informed, he was recently condemned to death.

Kayván Khalajábádí—having been arrested at his home three years ago by the revolutionary guards, he was taken to gohardasht prison in karaj, where he was interrogated about not being in the army and trying to go abroad. After five days of interrogation all his bahá'í books were confiscated and he was put into solitary confinement for 30 days. After a second interrogation he was put in a very small cell for 51 days. The interrogators and judges were muslim clerics and they all asked him the same questions. At one stage, he was pressured to sign a paper that he was not allowed to read and when he refused to sign it he was insulted and sentenced to eight years' imprisonment on the charge of "spying for the bahá'í party."

mr. khalajábádí objected to this sentence and appealed to a higher court. later, the deputy director of the prison asked him if he was still a bahá'í. when he responded in the affirmative, he was put in solitary confinement for six months and condemned to receive 50 lashes. in a third sentencing he was condemned to death on charges of "spying for the government occupying jerusalem." he appealed again and, as of december 1991, was awaiting his fourth trial.

All charges and sentences were conveyed to him orally only. on several occasions pressure was brought to bear on him in an unsuccessful attempt to force him to admit that he had been engaged in the

activities defined in the charges against him.

. . . Additional information will be shared with you if and when it becomes available.

with loving Bahá'í greetings,

Department of the Secretariat

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1992–1993 • The Holy Year

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Details Concerning the Bahá'í Prisoners in Iran

[signed: The Universal House of Justice]